

Syllabus

ness” of the official’s acts, *Harlow v. Fitzgerald*, 457 U. S. 800, 819, “assessed in light of the legal rules that were ‘clearly established’ at the time [the action] was taken,” *Anderson v. Creighton*, 483 U. S. 635, 639. If it would have been clear to a reasonable officer that the alleged conduct “was unlawful in the situation he confronted,” *Saucier v. Katz*, 533 U. S. 194, 202, the defendant officer is not entitled to qualified immunity. But if a reasonable officer might not have known that the conduct was unlawful, then the officer is entitled to qualified immunity. Pp. 150–152.

(b) Here, reasonable officials in petitioners’ positions would not have known with sufficient certainty that § 1985(3) prohibited their joint consultations and the resulting policies. There are two reasons. First, the conspiracy is alleged to have been among officers in the same Department of the Federal Government. And there is no clearly established law on the issue whether agents of the same executive department are distinct enough to “conspire” with one another within the meaning of 42 U. S. C. § 1985(3). Second, open discussion among federal officers should be encouraged to help those officials reach consensus on department policies, so there is a reasonable argument that § 1985(3) liability should not extend to cases like this one. As these considerations indicate, the question whether federal officials can be said to “conspire” in these kinds of situations is sufficiently open that the officials in this suit would not have known that § 1985(3) applied to their discussions and actions. It follows that reasonable officers in petitioners’ positions would not have known with any certainty that the alleged agreements were forbidden by that statute. Pp. 152–155.

KENNEDY, J., delivered the opinion of the Court, except as to Part IV–B. ROBERTS, C. J., and ALITO, J., joined that opinion in full, and THOMAS, J., joined except as to Part IV–B. THOMAS, J., filed an opinion concurring in part and concurring in the judgment, *post*, p. 156. BREYER, J., filed a dissenting opinion, in which GINSBURG, J., joined, *post*, p. 160. SOTOMAYOR, KAGAN, and GORSUCH, JJ., took no part in the consideration or decision of the cases.

Acting Solicitor General Gershengorn argued the cause for petitioners in Nos. 15–1358 and 15–1359. With him on the briefs in No. 15–1359 were *Principal Deputy Assistant Attorney General Mizer*, *Deputy Solicitor General Stewart*, *Curtis E. Gannon*, *Douglas N. Letter*, *Barbara L. Herwig*, *H. Thomas Byron III*, and *Michael Shih*. *William Alden McDaniel, Jr.*, filed briefs for petitioner in No. 15–1358.